ROSE NATALIE HEUR
versus
TWO FLAGS TRADING (PVT) LIMITED
and
PROVINCIAL MINING DIRECTOR – MASVINGO
and
MINISTER OF MINES AND MINING DEVELOPMENT N.O
and
R.M. MCINDOE
and
PROFESSOR F.P GUDYANGA

HIGH COURT OF ZIMBABWE
CHITAPI J
HARARE; 30 September 2025

Opposed Court Application

Advocate M. Chuma, for the applicant
Advocate T. Mpofu, for the first respondent
No appearance for the 2nd – 5th respondent

CHITAPI J:

The applicant is Rose Natalie Heuer a female adult who claims to be the owner of certain mining claims. This court granted default judgments against the applicant in Case Nos HC 11857/15 on 27 January, 2016 and in Case No. HC 2901/16 on 21 November, 2016. The parties to these judgments and the judgments content were as follows:

In case No. HC 11857/15 with respondents in default

"Two Flag Trading (Pvt) Limited	Applicant
and	
R.M Mandoe	1st respondent
Provincial Mining Director – Masvingo	2nd respondent
Minister of Mines and Mining Development NO	3rd respondent

IT IS ORDERED THAT:

1. The agreement of sale between the applicant and the 1st respondent dated 30th of June, 2003 be and is hereby declined lawful and legally binding. The applicant be and is hereby declared to be the sole lawful owner of the buildings, furniture and fittings; plant

tools and equipment located at the mining claims listed in Annexure "A" to this agreement of sale.
2. The 2nd respondent be and is hereby ordered to immediately transfer the mining claims described in paragraph 1 of this court order into the applicant's name.
3. The 2nd respondent to pay costs of suit."

In Case No. HC 2901/16 with respondents in default.

"Two Flags Trading (Pvt) Ltd	Applicant
and	
Provincial Mining Director – Masvingo	1st respondent
Professor F.P. Gudyanga	2nd respondent

IT IS ORDERED BY CONSENT THAT:

1. The first and second respondent (sic) be and are hereby directed to comply with the order of this Honourable Court in Case No. HC 11857/15 dated 29th January, 2016 not later than 30 working days of granting of this order.
2. Failure to comply with para (1) above, applicant may enroll this application on the unopposed motion roll.
3. There shall be no order as to costs of suit."

As can be noted from the quoted orders, the applicant was not a party to either of the two judgments. The applicant has filed in *casu,* a combined tripartite application with the ultimate relief being the rescission of the above two default judgments. The application for rescission of default judgment in the two cases is preceded by firstly, an application for condonation of delay in filing an application for condonation of late filing of rescission of judgment. The second application is for condonation of late filing of the rescission of default judgment application. The last application is the rescission of default judgment application. The application of rescission of default judgment can only be entertained if the first two applications for condonation are granted. A double condonation application is unusual. There is no rule which prohibits the making of the hybrid applications see CHILIMBE J's judgment in the case *PEOPLES OWN SAVINGS BANK* V *CHARTER PROPERTIES (PVT) LTD* wherein he referred to various decided cases in accepting that applications for condonation and the main relief application for rescission may be combined and heard in a "rolled up" or hybrid approach including the judgment of TAGU J in *Rutendo* v *Housing Cooperative Aaron Kumasiya & 10 Ors* HH 835/21 and the Supreme Court judgment in the case *Reza* vs *Gardener & Anor* SC 70/19 where at page 11, it is stated:

> "Furthermore it also seems expedient in order to expedite the finalization of the matter that the application for rescission be adjudicated at the same time as the application for condonation. In my view there is nothing in principle to preclude the composite adjudication

> of the two applications together especially as the considerations to be applied in the determination of both applications are virtually the same."

There is a cache however when the applications are combined. It is necessary for the applicant to ensure that each application is properly pleaded because strict sense, what will have happened is that the combined applications retain their separate identities. In a manner of speaking the hearing of the applications as compensate in fact amounts to a consolidation of the applications since each application is terminated by a separate order of court. The applications must be streamlined and the applicant must in respect of each plead the facts which support the requirements for such applications. It would in my view be proper in relation to the application to adopt by reference, averments made in say the condonation application in the rescission application to avoid repetition but the applications should not be completed.

The applicant *in casu*, in the founding affidavit tried to deal with the applications separately to the extent that although the she does not separately deal into the first and second condonations, she included a subheading headed "rescission." She ought to have separately dealt with each condonation. When the matter was called, *Advocate Mpofu* moved the objections *in limine* which he took on the heads of argument. I propose to deal only with the first objections because if it succeeds, the application will have to be struck off the roll. Counsel submitted that the application was not properly before the court because the applicant did not serve the fourth and fifth respondent with the application. The applicant through the counsel *Advocate Chuma* admitted that the fourth and fifth were not served because they had no legal interest in the matter and no order was being sought from them

It is noted that in Case No. HC 11875/15, the fourth respondent R.M Mclndoe per court judgment referred to (*supra*) was the first respondent. The court declined an agreement between the first respondent herein as applicant and RM Mclndoe as being valid and binding. That same agreement is the one which ordered that mining claims which the applicant herein claims to have been unlawfully transferred as she was the holder of the same who was not cited in these proceedings, desire. The applicant obviously seeks to challenge the transfer of the claims. One cannot understand how it can be said that the alleged holder of the claims who allegedly sold them to the first respondent herein would hot have a legal interest in the matter. He obviously has a legal interest because without him entering into an agreement with the first respondent herein, which agreement the court declared to be lawful, there would be no dispute for the applicant to litigate on.

In relation to Case No. 2901/16, the second respondent herein and Professor Gudyanga were ordered to comply with the court order in Case No. HC 11875/15. From the papers in this application, the court order was then complied with and the claims now in disputation were transferred to the first respondent herein as applicant in Case No. HC 2901/16. It must follow that a rescission of the judgment in Case No. HC 11875/15 will entail the second respondent herein as well as Professor Gudyanga having to alter or reverse the registrations ordered in Case No. HC 11875/15. Therefore it is again mind boggling or intriguing to appreciate how it could be said that Professor Gudyanga, the fifth respondent has no legal interest in the condonations and rescission applications.

The two applications for condonations are albeit combined, court applications which are made in terms of rule 59. Rule 59(2) provides in clear terms as follows:

> "A copy of a court application and of every affidavit by which it is supported shall be served upon every respondent."

The rule is clear and does not provide that service should only be effected on respondents with a legal interest on the matter. In any event it is does appear to me to be a matter of logic and common sense that where the applicant seeks a rescission, variation or correction of a court order, the parties to whom the court order relates or who were the litigants should be cited. They should not even though they may not have defended the matter wake up to find that an order made on a case in which they were parties was rescinded or varied or corrected without their knowledge which knowledge comes to their knowledge through service of processes by the manner provided for in the rules.

The applicant in the affidavit stated of the fourth and fifth respondents that their further particulars were not known to her. The application was also endorsed, address unknown. *Advocate Mpofu* correctly noted that the applicant did not pay other means of service of process. It appears to me however that the applicant was not bothered to find out the further particulars of the fourth ad fifth respondent because of a misguided belief that the two respondents did not need to be cited because they had no legal interest in the three applications in *casu*. I say so because the applicant was content to state that the further particulars of the two respondents were unknown without further ado. The applicant did not state that an effort had been made to find out the particulars of the fourth and fifth respondents and for their addresses.

It follows from the non-service of the application on this matter that the matter cannot be proceeded with. It has been improperly enrolled. The applicant did not even attempt to withdraw the application against the fourth and fifth respondent. The argument of legal interest was misplaced. The applicant did not even seek a postponement to serve the fourth and fifth respondents. The combined applications must therefore be struck off the roll. There is no reason not to order that costs must follow the event. Where a party fails to comply with the rules in settling an application such party inevitably must be ordered to pay the other party's costs unless special reasons which the party in violation of the rules must establish are shown to exist.

IT IS ORDERED THAT:

1. The application be and is hereby struck off the roll with costs.

CHITAPI J: ……..

Webb, Law & Barry inc Ben Baron & Partners, applicants' legal practitioners
Tabana and Marwa – 1st respondent's legal practitioners